

CHAPTER 81.

An Act to consolidate and regulate the law regarding the circuits of the High Court of Justiciary and the holding of circuit courts, and to amend the law relating to criminal procedure in Scotland in certain respects.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
High
Court of
Justiciary
to determine
circuits, &c.

1.—(1) It shall be lawful for the Lords Commissioners of Justiciary by Act of Adjournal from time to time as to them shall seem necessary after consultation with the Lord Advocate—

- (a) to alter the existing circuits of the High Court of Justiciary, to form new circuits, and to fix and determine the limits of each existing or new circuit, and the counties, portions of counties, cities or burghs, and districts which shall be included within the same;
- (b) to detach any portion of the district exclusively attached to the said High Court sitting at Edinburgh from such district and to include the same in any adjoining circuit or to detach any district from an adjoining circuit and to include the same in the district exclusively attached to the said High Court sitting at Edinburgh;
- (c) to fix and determine the number of circuit courts to be held and the places at which the same shall be held within each such circuit in each year, and to define the periods of the year at which such circuit courts shall be held and to alter the same as occasion shall require, and to appoint the particular dates of such courts and to appoint that any particular circuit courts in any circuit shall be for the trial of criminal cases only; and

- (d) to make such provision as may be necessary for the carrying out of the powers hereinbefore conferred, including such modifications as may appear to be necessary in the existing statutory provisions for the preparing and keeping jury books and for making returns of and summoning jurors to serve on any assize for the trial of criminal cases.

(2) Every Act of Adjournal made in pursuance of this section shall be published in such manner as the Lords Commissioners of Justiciary shall direct, and shall take effect from the date thereof or from such other date as shall be specified therein.

(3) The Lords Commissioners of Justiciary shall hold such sittings for the trial of criminal cases from time to time as may be necessary on the requisition of the Lord Advocate. And every sitting of the High Court, whether under the existing law and practice or under this Act shall be a sitting of the High Court of Justiciary.

2.—(1) Where a person accused who has pleaded not guilty at the first diet shall thereafter, at any time before the date appointed for the second diet, give written notice to the Crown Agent through his own procurator that he intends to plead guilty to the charge in whole or in part, and the Lord Advocate shall intimate to the Clerk of Justiciary that he is prepared to accept such plea, section forty-nine of the Criminal Procedure (Scotland) Act, 1887, shall apply to the case of such person in like manner as if he had pleaded guilty at the first diet, and where such person shall at the second diet tender a plea not in accordance with the notice, and such plea shall not be accepted by the prosecutor, section forty-one of the said Act shall apply in like manner as it applies to the case where the Court allows a plea of guilty to be withdrawn or modified.

Procedure
where
accused
person
notifies
after first
diet inten-
tion to
plead guilty.
50 & 51 Vict.
c. 35.

(2) Sections forty-eight and fifty of the Criminal Procedure (Scotland) Act, 1887, shall apply wherever the number of persons indicted for any sitting of the High Court of Justiciary, who have neither pleaded guilty nor in whose cases such notice and intimation as is mentioned in the preceding subsection has been given, is such as to render the holding of a special or separate Court inexpedient or unnecessary:

Provided that in the said section fifty the words
 “ presented within three days immediately succeeding
 “ the first diet ” shall be repealed.

Clerk to
 state charge
 and swear
 jury.

3. The following section shall be substituted for
 section fifty-four of the Criminal Procedure (Scotland)
 Act, 1887 :—

“ 54. When a jury has been balloted the
 clerk of court shall inform the jury of the charge
 against the person accused either by reading
 the same in the words of the indictment (with
 the substitution of the third person for the second)
 or, if the presiding judge shall, because of the
 length or complexity of the indictment, so direct,
 by reading to the jury a summary of the charge
 approved by the judge; and the clerk of court
 shall thereafter administer the oath in common
 form; and it shall not be necessary to lay before
 the jury copies of the indictment, list of witnesses,
 or list of productions, but it shall nevertheless
 be competent to the presiding judge, if he shall
 so think fit, to direct that copies of the indictment
 (omitting so far as necessary to conform to the
 terms of section sixty-seven of this Act any
 reference to previous conviction and without any
 list of witnesses or of productions appended)
 shall be laid before the jury.”

Repeal.

4. The enactments specified in the Schedule hereto
 are hereby repealed to the extent specified in the third
 column of the said schedule: Provided always that
 notwithstanding such repeal the arrangements presently
 existing regulating the limits of the circuits of the High
 Court of Justiciary, the number of circuit courts to be
 held annually in each such circuit, and the times and
 places for holding the same, and any other matters dealt
 with by section one of this Act shall continue in full
 force and effect until and except in so far as the same
 shall be altered by the said Lords Commissioners in
 pursuance of the powers conferred upon them by section
 one of this Act.

Short title.

5. This Act may be cited as the Circuit Courts
 and Criminal Procedure (Scotland) Act, 1925.

SCHEDULE.

Section 4.

Session and Chapter.	Title of Act.	Extent of Repeal.
6 Anne c. 40 -	The Union with Scotland (Amendment) Act, 1707.	Section four.
20 Geo. II. c. 43.	The Heritable Jurisdiction (Scotland) Act, 1746.	Section thirty-one, in section thirty-three from the words "or of such other circuit" to the words "hereinafter mentioned" and from the words "and that the burgh of Inveraray" to the end of the section. Section thirty-nine. Section forty, from the beginning to the words "hereinbefore made."
21 Geo. II. c. 19.	The Sheriffs (Scotland) Act, 1747.	Section thirteen.
9 Geo. IV. c. 29.	The Circuit Courts (Scotland) Act, 1828.	Sections one, three, and four
11 Geo. IV. & 1 Wm. IV. c. 37.	The Criminal Law (Scotland) Act, 1830.	Section three.
39 & 40 Vict. c. cliii.	(Local Act). An Act to alter the Justiciary District of the County of Peebles.	Section one.
50 & 51 Vict. c. 35.	The Criminal Procedure (Scotland) Act, 1887.	In section forty-six from the beginning of the section down to the words "shall be a sitting of the High Court of Justiciary and". In section fifty the words "presented within three days immediately succeeding the first diet." Section fifty-four. Schedule P.